

SENATE/HOUSE FILE _____
BY (PROPOSED STATE PUBLIC
DEFENDER BILL)

A BILL FOR

1 An Act establishing the state public defender's pilot project
2 to implement innovative models of child welfare legal
3 representation as the project to preserve families.
4 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 13B.13, Code 2026, is amended to read as
2 follows:

3 **13B.13 State public defender ~~pilot project~~ — child welfare**
4 **~~legal representation project to preserve families.~~**

5 1. Notwithstanding any other provision of the law to the
6 contrary, ~~for each fiscal year for the period beginning July 1,~~
7 ~~2020, and ending June 30, 2025,~~ the state public defender may
8 ~~establish a pilot~~ shall administer and maintain the project to
9 ~~implement innovative models of legal representation in order~~
10 preserve families to assist families involved in the child
11 welfare system. ~~The state public defender shall have sole~~
12 ~~discretion to establish and implement the pilot project.~~

13 2. The state public defender may ~~implement~~ administer and
14 maintain the ~~new pilot project in up to sixteen counties to~~
15 preserve families throughout the state.

16 3. The ~~purpose of the pilot project is to~~ preserve families
17 shall ~~implement, administer, and study innovative ways~~ models
18 of legal representation, through a team approach or ~~through~~
19 other methods, to achieve positive outcomes for families,
20 reduce trauma to young children, and deliver financial benefits
21 to families and their communities.

22 4. The state public defender may coordinate with other
23 agencies and organizations to ~~implement the pilot project~~
24 administer and maintain, seek grant funding for, and ~~measure~~
25 ~~the results~~ analyze the outcomes of the project to preserve
26 families.

27 5. The state public defender may appoint an attorney to
28 represent an indigent person prior to initiation of formal
29 proceedings, without court order, if such representation is
30 deemed appropriate by the state public defender and relates to
31 the purposes of the ~~pilot project~~ to preserve families.

32 6. The state public defender may adopt rules pursuant to
33 chapter 17A to administer this section.

34 EXPLANATION

35 The inclusion of this explanation does not constitute agreement with

1 the explanation's substance by the members of the general assembly.

2 Under current law, the state public defender (SPD) may
3 establish a pilot project to implement innovative models
4 of legal representation to assist families involved in the
5 child welfare system by implementing and studying ways to
6 achieve positive outcomes for families, reduce trauma to young
7 children, and deliver financial benefits to families and their
8 communities. The SPD may implement the pilot project in up to
9 16 counties throughout the state, and the pilot project expires
10 on June 30, 2025.

11 This bill changes the pilot project into a permanent program
12 known as the project to preserve families (PPF) and allows the
13 SPD to administer and maintain the PPF throughout the state.
14 The SPD may adopt rules to administer the PPF.